

26VECP00070 26VECP00070

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Case Number: 26VECP00070 Hearing Date: June 25, 2026 Dept: O

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

GEVORG ASLIBEKYAN, RIMA HOVAKIMYAN,

Petitioners,

vs.

TESLA
INSURANCE,

Respondent.

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CASE NO.: 26VECP00070

ORDER

GRANTING PETITIONER'S MOTION TO COMPEL ARBITRATION

ORDER

GRANTING AND GRANTING IN PART PETITIONER'S MOTIONS TO COMPEL FURTHER

I.

BACKGROUND

On February 9, 2026,
Petitioners Gevorg Aslibekyan and Rima Hovakimyan (jointly, "Petitioners")
filed a Petition to Commence Arbitration with Respondent Tesla Insurance
("Tesla"). Petitioners provide that this proceeding arises out of a motor
vehicle collision in which Petitioners sustained personal injuries when their
vehicle was struck by an underinsured motorist, Nicole Waters Uhlmann. Tesla is
the underinsured motorist ("UIM") carrier and is contractually obligated to
step into the shoes of the underinsured motorist and pay benefits up to the
policy limits.

Petitioners now move to
compel arbitration. Petitioners also move to compel further responses to their Form
Interrogatories (Set One) and Requests for Production of Documents (Set One).

II.

PROCEDURAL

HISTORY

On February 9, 2026,
Petitioners filed a Petition to Commence Arbitration.

On May 22,
2026, Petitioners filed the instant Motion to Compel Arbitration.

On May 26,
2026, Petitioners filed the instant Motions to Compel Further.

On June 11,
2026, Tesla filed their Oppositions.

On June 12,
2026, Petitioners filed their Replies.

III.

LEGAL STANDARD

A.

Compel Arbitration

Parties may
be compelled to arbitrate a dispute upon the court finding that: (1) there was
a valid agreement to arbitrate between the parties; and (2) said agreement
covers the controversy or controversies in the parties' dispute. (See
Code Civ. Proc. § 1281.2.) [1] California
law favors enforcement of valid arbitration agreements. (See *Armendariz*
v. Foundation Health & Psychcare Services, Inc. (2000) 24
Cal.4th 83, 97.) A party petitioning to compel arbitration has the burden
of establishing the existence
of a valid agreement to arbitrate and the party opposing the petition has the
burden of proving, by a preponderance of the evidence, any fact necessary to
its defense. (See
Banner
Entertainment, Inc. v. Superior Court (1998) 62
Cal.App.4th 348, 356-357.)

“If a court of competent jurisdiction . . . has ordered arbitration of a controversy which is an issue involved in an action or proceeding pending before a court of this State, the court in which such action or proceeding is pending shall, upon motion of a party to such action or proceeding, stay the action or proceeding until an arbitration is had in accordance with the order to arbitrate or until such earlier time as the court specifies.” (Code Civ. Proc. § 1281.4.)

In deciding a motion to compel arbitration, trial courts must first decide whether an enforceable arbitration agreement exists between the parties and then determine whether the claims are covered within the scope of the agreement. (See *Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 961.)

B.
Request
for Production of Documents

In responding to a request for production of documents, a party must provide one of the following: (1) a legally adequate statement of compliance; (2) a statement of inability to comply; or (3) an objection to the particular demand. (See Code Civ. Proc. § 2031.210(a).) If any objections are made, they must: (1) “[i]dentify with particularity any document . . . falling within any category of item in the demand to which an objection is being made”; and (2) “[s]et forth clearly the extent of, and the specific ground for, the objection.”² (Id. at § 2031.240(b).) A statement that the responding party is unable to comply with a particular demand “shall affirm that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand”; “shall also specify whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party”;³ and “shall set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (Id. at § 2031.230.)⁴

A party who

believes a responding party has served (1) an incomplete statement of compliance, (2) an inadequate, incomplete, or evasive statement of compliance, or (3) an unmeritorious objection can move for an order compelling further responses but must “set forth specific acts showing good cause justifying the discovery sought by the demand.” (See *id.* at §§ 2031.310(a)-(b)(1).)

C.

Interrogatories

A propounding

party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.)² The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid.³ (See Cal. Rules of Court, rule 3.1345(c).)

However,

where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.”⁴ (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.)⁵ “The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.”⁶ (Columbia Broadcasting System, Inc. v. Superior Court (Rolf) (1968) 263 Cal.App.2d 12, 19.)

IV.

ANALYSIS

A.

Motion to Compel Arbitration is
Granted.

A petition to compel arbitration of an Uninsured/Underinsured Motorist (“UIM”) claim on an automobile insurance policy is a petition to compel arbitration made pursuant to Code of Civil Procedure § 1281.2. (See *Gordon v. G.R.O.U.P., Inc.* (1996) 49 Cal.App.4th 998, 1005 [noting that arbitration of a claim on an uninsured motorist policy may be compelled to arbitration and citing Code of Civil Procedure § 1281.2].) As such, the court must make a finding that there is a written agreement to arbitrate and that a party to the agreement has refused to do so. (See Code Civ. Proc. § 1281.2.)

The moving party can meet its initial burden of proving the existence of an arbitration agreement by attaching a copy of the Agreement to this motion bearing the signature of the opposing party. (See *Bannister v. Marinidence Opco, LLC* (2021) 64 Cal.App.5th 541, 541-543 [“The party seeking arbitration can meet its initial burden by attaching to the petition a copy of the arbitration agreement purporting to bear the respondent’s signature.”].)

Alternatively, the moving party can meet its initial burden by setting forth the agreement’s provisions in the motion. (See Cal. Rules of Court, rule 3.1330; see also *Condee v. Longwood Management Corp.* (2001) 88 Cal.App.4th 215, 219.)

“If the moving party meets its initial prima facie burden and the opposing party disputes the agreement, then in the second step, the opposing party bears the burden of producing evidence to challenge the authenticity of the agreement.” (*Gamboa v. Northeast Community Clinic* (2021) 72 Cal.App.5th 158, 165.) The evidence must be sufficient to create a factual dispute to shift the burden back to the arbitration proponent who retains the ultimate burden of proving, by a preponderance of the evidence, the authenticity of the signature. (See *Iyere v. Wise Auto Group* (2023) 87 Cal.App.5th 747, 755.)

Petitioners argue arbitration is required pursuant to Insurance Code § 11580.2, which mandates arbitration of disputes concerning liability and damages in underinsured motorist claims. Petitioners argue there exists a valid arbitration agreement between the parties in Petitioner’s insurance policy issued by Tesla that provides for arbitration where the parties disagree as to liability or the amount of damages. (See Mot. at 6:17-19.) Petitioners

quote the policy as follows: "If 'we' and an 'insured' do not agree: (a) Whether that 'insured' is legally entitled to recover damages; or (b) As to the amount of damages... then the matter may be arbitrated." (See Declaration of Zhanna Sanamyan filed May 22, 2026 ("Sanamyan Decl."), ¶ 1, Ex. 1, Personal Auto Policy at 16 of 27.) Petitioners also contend the policy further provides that the arbitration decision is binding as to liability and damages. (See id.)

In opposition,

Tesla agrees the parties' dispute is to be arbitrated and thus this Motion is moot. (See Opp. at 1:25-28.) Tesla's counsel attaches an email stating his agreement to arbitrate and proposing two arbitrators. (See Declaration of Dane C. Cummaro filed June 11, 2026 ("Cummaro Decl."), ¶ 2, Ex. 1.)

In reply,

Petitioner's argue due to Tesla's delay in taking affirmative steps to move the matter towards arbitration, including appointing an arbitrator, Petitioners are entitled to an order compelling arbitration. (See Reply at 2:20-23, 3:26-4:3.)

The Court

finds Petitioner is entitled to an order compelling arbitration. The Court finds there exists a written agreement to arbitrate between the parties. Disputes on claims like Petitioners' are required by law to be arbitrated. California law provides auto insurers must include the provisions of Insurance Code § 11580.2 in UI/UIM policies including the determination of whether the insured is legally entitled to recover damages and the amount of damages shall be made by agreement between the insured and the insurer or, in the event of disagreement, by arbitration. (See Ins. Code § 11580.2(f); Harford Fire Insurance Co. v. Macri (1992) 4 Cal.4th 318, 324.) Here, Petitioners have provided a copy of their insurance policy issued by Tesla containing an arbitration provision regarding damages, which encompasses the parties' dispute.

It is

undisputed Petitioner's insurance policy includes an agreement for arbitration and both parties agree arbitration is appropriate. Accordingly, the Court GRANTS Petitioners' Motion to Compel Arbitration. The Court denies Petitioners' request for monetary sanctions as there is no statutory basis for issuing monetary sanctions in connection with granting a motion to compel arbitration.

B.

Discovery Motions

“[T]he

uninsured motorist law grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations.” (Miranda v. 21st Century Ins. Co. (2004) 117 Cal.App.4th 913, 926 [emphasis in original]; Ins. Code § 11580.2(f)(2).)

1.

Meet And Confer

Before

bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes “misuse of discovery process”. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable

and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

Petitioner's

counsel attests he sent Tesla's counsel a meet and confer letter identifying each deficient response, demanding supplemental, verified, code-compliant responses without objections. (See SROGs Declaration of Zhanna Sanamyan filed May 26, 2026 (“Sanamyan Decl.”), ¶ 17, Ex. 12.)

The Court

finds Petitioners' letter does not satisfy their obligation to make a reasonable and good faith attempt, either in person, by telephone, or by video conference, to informally resolve each issue. The Court advises parties to comply with their meet and confer obligation or risk denial of discovery motions in the future.

2.

Petitioners' Motion FROGs is Granted.

Petitioners seek

further responses to Nos. 16.3-16.6 and 16.10. These requests are contention interrogatories that ask Tesla whether it contends Petitioners' injuries were not caused by the incident, whether medical services were unrelated, whether costs were unreasonable, whether wage loss was not caused by the incident, and whether Tesla holds documents from healthcare providers concerning Petitioners' condition. (See Sep. Stmt. Nos. 16.3-16.6, 16.10.)

Tesla's

supplemental response to Nos. 16.3-16.6 and 16.10 states "Nos. 16.3, 16.4, 16.5, 16.6, 16.10 – Respondent is not in a position to provide a substantive response at this time. Responding Party is just beginning to issue subpoenas for Claimants' medical records and set their depositions. Moreover, Claimant has not yet been deposed. At this time, Respondent's original response is code compliant and accurate." (Id.)

Petitioners

argue further responses are warranted because Tesla has been in possession of their medical records for approximately six to eight months, has taken a recorded statement, and has had this claim under investigation for over fifteen months Tesla should provide a substantive response based on the information it has to date. Petitioners argue Tesla cannot wait to conduct its own discovery before providing substantive responses. (See id.)

Tesla argues the

section 16.0 interrogatories are premature. Tesla argues although it possessed claim information it does not mean it had completed discovery necessary to formulate litigation contentions concerning causation, damages, preexisting conditions, the reasonableness and necessity of treatment, or alleged wage loss. (See Opp. at 4:19-25.) Tesla argues at the time the responses were served, critical discovery remained outstanding, including Petitioners'

depositions, third-party discovery, medical record collection, and further investigation concerning prior injuries and prior claims. (See *id.*, at 5:19-25.)

In reply,

Petitioners argue Tesla cannot invoke the absence of completed discovery as justification for withholding responses when it has done nothing to complete that discovery. (See Reply at 2:16-20, 3:14-17.) Petitioners also argue Tesla's own conduct—making a monetary settlement offer before the interrogatories were even propounded—demonstrates it had already evaluated causation, medical necessity, and damages. (See *id.*, at 5:19-22.)

The Court

agrees with Petitioners and finds they are entitled to further response to Nos. 16.3-16.6 and 16.10. The Court notes this claim was initiated in January 2025 and that, as Petitioners point out, Tesla does not state what affirmative steps it has taken to conduct the discovery it states it must complete. Although Tesla contends its discovery responses were appropriate based on the information reasonably available to it at the time of the response, Tesla does not affirm it has noticed depositions or issued any third-party subpoenas. The Court further agrees with Petitioners that Tesla is empowered to provide a substantive response given that it possesses Petitioners' medical records and claim file.

Accordingly,

the Court GRANTS Petitioners' Motion FROGs. Tesla is ordered to provide further code compliant responses on or before July 10, 2026.

3.

Petitioners' Motion RFPs is Granted.

Petitioners

seek further responses to Nos. 20-22. No. 20 states "Produce all documents relating to any ISO Claim Search or ISO claims index searches conducted concerning Claimant." (Sep. Stmt. No. 20.)

No. 21 states

"Produce all documents relating to claims for personal injuries made by Claimant prior to the incident." (*Id.*, No. 21.)

No. 22 states

“Produce all documents supporting the contention that prior to the incident, Claimant had injuries, afflictions, illnesses, or conditions affecting the body parts allegedly injured in this matter.” (Id., No. 22.)

Tesla

responds the same to each request, “Responding Party maintains that any ISO claims searches performed are protected by the attorney-client privilege and/or attorney work product doctrine. Without waiving these objections, Responding Party agrees to provide a privilege log identifying any documents withheld on the basis of privilege.” (Id., Nos. 20-22.)

Petitioners

explain that the Insurance Services Office (“ISO”) claims index is a third-party database which insurance carriers submit data to and obtain reports identifying prior claims. (See id.) Petitioners argue because Tesla’s barebones privilege log does not state a basis for the assertion that these third-party generated reports are privileged, they should be produced. (See id.) Petitioners argue prior injuries are highly relevant to UIM arbitration, where the carrier routinely contends that the claimant’s injuries are pre-existing or caused by intervening events. (See id.)

Tesla argues

investigative materials assembled by counsel in anticipation of litigation are protected work product. (See Opp. at 2:22-27, citing *Coito v. Superior Court* (2012) 54 Cal.4th 480, 495 [“witness statement obtained through an attorney-directed interview is entitled as a matter of law to at least qualified work product protection”] and *Dowden v. Superior Court* (1999) 73 Cal.App.4th 126, 128-129.) Tesla argues disclosure of such materials would reveal the nature and scope of their investigation, the issues considered relevant by Tesla and its counsel, and the areas of inquiry pursued in evaluating Petitioners’ claims. (See id., at 3:9-11.) Additionally, Tesla argues because Petitioners possess equal or superior access to information concerning their own prior claims history and prior injuries, there is no basis to invade Tesla’s work product privilege. (See id., at 3:21-26.) Tesla argues their privilege log is sufficient as they identified the withheld documents, their dates, Bates ranges, and the privileges asserted. (See id., at 4:6-8.)

In reply,

Petitioners argue the work product doctrine does not apply to ISO claim search reports, as they are entirely generated by ISO's database and none of its contents reflect an attorney's litigation strategy, as was at issue in *Coito*. (See Reply at 3:5-11.) Petitioners argue Tesla's position would mean any document an attorney reviews would become work product which is not what Dowden held. (See *id.*, at 3:11-19.) Petitioners also argue Tesla has not submitted a declaration from counsel attesting to when legal representation was retained, whether counsel specifically directed the ISO search, or how production of these specific documents would reveal any litigation strategy to establish work product privilege. (See *id.*, at 4:3-6.) Petitioners maintain Tesla's privilege log is deficient, as it only identifies two dated entries with the description: "ISO Search on Claimant." (See *id.*, at 4:13-15.) Further, Petitioners argue Tesla cannot categorically refuse to produce responsive documents to Nos. 21-22 in their possession as this would preclude Petitioners from defending against prior claims evidence. (See *id.*, at 5:6-25.)

The Court

finds further responses are warranted as it does not find the requested documents are privileged. The work product privilege protects from discovery "writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories." (Code Civ. Proc. § 2018.030(a).) Other work product is discoverable if the court determines its protection would unfairly prejudice the party seeking discovery. (See *id.*, § 2018.030(b).)[2] Here, the Court finds the ISO Claim Search documents would not reveal Tesla's counsel's investigative strategy or mental impressions as these documents are generated wholly by a database query that presumably reflects Petitioner's entire claim history. Tesla identifies nothing in particular about the ISO Claim Search that would reflect counsel's mental impressions or legal strategy. Moreover, the Court agrees with Petitioners that Tesla's privilege log does not make a preliminary showing that ISO Claim Search documents are entitled to absolute protection or qualified protection.

The Court

finds Tesla's argument that Petitioners have equal access to the requested information is meritless. Nos. 20-22 request responsive documents in Tesla's possession, custody or control. Tesla is not relieved of their obligation to produce responsive documents simply because they believe Petitioners possess personal knowledge of the information contained by the requested documents. (See Code Civ. Proc. §§ 2031.220, 2031.230.) An exception would exist

if Tesla already produced the responsive documents, but that is not the case here.

Accordingly,
the Court GRANTS Petitioners' Motion RFPs.

4.
Petitioner's Motion SROGs is Granted in
part.

A.
No. 13

"Was the
underinsured motorist's negligence the proximate cause of Claimant's injuries?"
(Sep. Stmt. No. 13.)

Tesla
responded "Simply because Claimant Aslibekyan asserts that he sustained
injuries as a result of the subject accident does not make it so. Respondent
acknowledges that Claimant Aslibekyan alleges he sustained injuries from the
accident; however, Respondent is not in a position to state unequivocally that
the accident was the proximate cause of those injuries." (Id.)

Petitioners
argue Tesla's response is deficient as it fails to respond based on the
information available to it. (See id.)

In
opposition, Tesla argues it could not have provided a definitive response
because it had not conducted sufficient discovery at the time it served its
response. (See Opp. at 2:4-7.)

In reply,
Petitioners argue Tesla has delayed conducting discovery and thus it cannot
justify its deficient response on that basis. (See Reply at 6:1-5.)
Petitioners also argue Tesla could have responded to this request because it
already offered a monetary settlement, implying it has evaluated liability,
causation, and damages. (See id., at 7:1-9.)

The Court once

again finds Tesla's response is deficient. Per § 2030.220, "[e]ach answer in a response to interrogatories shall be as complete and straightforward as the information reasonably available to the responding party permits" and "[i]f an interrogatory cannot be answered completely, it shall be answered to the extent possible." (Code Civ. Proc. § 2030.220(a)-(b).) The Court finds Tesla's response does not answer the interrogatory to the extent possible based on the information available to Tesla. (See id.) Tesla's response that "is not in a position to state unequivocally that the accident was the proximate cause of those injuries" provides no answer to the request at all. "If only partial answers can be supplied, the answers should reveal all information then available to the party. If a person cannot furnish details, he should set forth the efforts made to secure the information. He cannot plead ignorance to information which can be obtained from sources under his control." (Deyo v. Kilbourne (1978) 84 Cal.App.3d 771, 772.) Thus, the Court finds further response to No. 13 is warranted.

The Court

GRANTS the Motion as to No. 13.

B.

No. 17

"Was Claimant

comparatively negligent?" (Sep. Stmt. No. 17.)

Tesla

responded "Respondent stated that Claimant was not liable for the accident." (Id.)

Petitioners

argue Tesla's response is deficient because should definitively state "yes" or "no". (See id.)

The Court

finds further response is not warranted to No. 17 as it is code compliant. (See Code Civ. Proc. § 2030.210(a)(1).)

Thus, the

Court GRANTS in part Petitioner's Motion SROGs as to No. 13 and denies it as to No. 17.

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5.

Discovery

Sanctions

The court

shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, interrogatories, or requests for admission, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc. §§ 2031.310(h), 2030.300(d), 2033.290(c).)

Petitioners

request discovery sanctions in the amount of \$2,860.00 in connection with each Motion FROGs, Motion RFPS, and Motion SROGs. This total comprises a \$60 filing fee and 3 hours of meet and confer correspondence, 2 hours to prepare each Motion, and 2 hours to attend the hearing at counsel's hourly rate of \$400.00. (See e.g., SROGs Sanamyan Decl., ¶ 20.)

Tesla opposes

sanctions arguing it has been substantially justified in its position. Tesla contends it has engaged in meet-and-confer efforts, provided supplemental responses regarding other discovery issues, produced documents, and provided a privilege log. (See SROGs Opp. at 6:5-10.) Tesla also argues it further explained during the meet-and-confer process that additional investigation and discovery remained necessary before final contentions concerning causation and damages could be formulated. (See id.)

Petitioners

argue Tesla has ignored discovery and engaged in multiple rounds of meet and confer efforts after repeatedly serving boilerplate objections.

The Court finds

discovery sanctions are appropriate here and awards Petitioner's counsel \$2,660.00. The Court does not find Tesla has sufficiently shown it acted with substantial justification in its discovery responses as it fails to account for its delay in

conducting discovery, or explain why it could not answer based on information available to it at the time of responding, and has failed to substantiate its privilege log to support its privilege objection. The Court finds 2 hours to prepare each Motion and 0.5 hours to remotely attend the hearing on these Motions at counsel's hourly rate is reasonable. The Court also awards the three filing fees.

Tesla's

counsel is ordered to pay Petitioner's counsel \$2,660.00 on or before July 31, 2026.

V.

CONCLUSION

Based on the

foregoing, the Court GRANTS Petitioners' Motion to Compel Arbitration. The Court denies Petitioners' request for monetary sanctions.

The Court

GRANTS Petitioners' Motion FROGs and Motion RFPs. The Court GRANTS IN PART Petitioner's Motion SROGs as to No. 13 and denies it as to No. 17. Tesla is ordered to provide further code compliant responses on or before July 10, 2026.

Tesla's

counsel is ordered to pay Petitioner's counsel \$2,660.00 in discovery sanctions on or before July 31, 2026.

The Court continues

the Case Management Conference to December 15, 2026, at 8:30 a.m. The parties are ordered to file a Joint Status Update on or before December 8, 2026.

IT

IS SO ORDERED.

DATED: June 25, 2026

Hon. Michael R. Amerian

Judge,

Superior Court

[1] All statutory references

are to California codes unless stated otherwise.

[2] “The language of section

2018.030 does not otherwise define or describe work product. Courts have resolved whether particular materials constitute work product on a case-by-case basis, although they have sometimes taken different approaches. Some courts have attempted to answer the question by distinguishing between derivative or nonderivative material, or between interpretative and evidentiary material. These cases have concluded that only derivative or interpretive material—material created by or derived from an attorney’s work reflecting the attorney’s evaluation of the law or facts—constitutes work product. Examples of such material include diagrams prepared for trial, audit reports, appraisals, and other expert opinions, developed as a result of the initiative of counsel in preparing for trial. Nonderivative material—material that is only evidentiary in nature—does not constitute work product. Examples of such material include the identity and location of physical evidence or witnesses.” (Coito, 54 Cal.4th at 488–489 [cleaned up].)